



DEPARTMENT OF THE NAVY
NAVAL SEA SYSTEMS COMMAND
1333 ISAAC HULL AVE SE
WASHINGTON NAVY YARD DC 20376-0001

IN REPLY REFER TO
4200
Ser: 0255/001
5 Jan 2024

Subj: AN/SPY-6(V) RADAR UNCLASSIFIED GOVERNMENT FURNISHED
INFORMATION TERMS OF USE AGREEMENT (N00024-25-R-5510)

As part of Request For Information N00024-25-R-5510 and any subsequent synopsis and/or solicitation issued under the same notice, you may receive AN/SPY-6(V) radar technical data and other Government Furnished Information (GFI) upon Government receipt and verification of your DD Form 2345 Military Critical Technical Data Agreement and receipt of the executed Terms of Use Agreement herein. These documents shall only be used in connection with the above referenced notice.

AN/SPY-6(V) GFI is controlled in accordance with the following:

DISTRIBUTION STATEMENT D: Distribution authorized to Department of Defense (DoD) and U.S. DoD contractors only (Critical Technology). Other requests shall be referred to the Program Executive Office, Integrated Warfare Systems (PEO IWS 2.0), Washington Navy Yard, 1333 Isaac Hull Ave SE, Washington, DC 20376.

WARNING: This document contains technical data whose export is restricted by the Arms Export Control Act (Title 22, U.S.C. Sec. 2751 et seq.) or the Export Administration Act of 1979 (Title 50, U.S.C., App 2401, et seq.), as amended. Violations of these export laws are subject to severe criminal penalties. Disseminate in accordance with provisions of DoD Directive 5230.25.

DESTRUCTION NOTICE: For Unclassified or Limited Dissemination Documents destroy by any method that will prevent disclosure of contents or reconstruction of the document.

In order to facilitate your review, you are granted authority to make copies for distribution internal to your company. All copies are property of the U.S. Government and must be controlled in accordance with DoD 5220.22-M, National Industrial Security Program Operating Manual (NISPOM) and the terms of your Company's Defense Security Service (DSS) approved document handling procedures.

You may NOT:

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- a. Duplicate, transmit, or post the above documents/data in a manner contrary to the guidance provided herein.
- b. Disclose the above documents to anyone without proper clearance.
- c. Disclose the above documents to foreign nationals or transmit said enclosures outside the geographical bound or custom territory of the United States of America unless a valid Technical Assistance Agreement (TAA)/Export License is in place.

You shall maintain a log of all produced copies, to whom and when the copies were distributed, and date of destruction. You shall furnish these records upon demand of the Contracting Officer or other authorized Government security officials.

You shall destroy the originals and all copies of Government Furnished Information (GFI) documents no later than 30 September 2025, unless the Government issues a subsequent formal solicitation for AN/SPY-6 production requirements and your company has submitted a proposal. In the latter case, you shall provide the certification of destruction to the Contracting Officer no later than 30 days after contract award. You shall maintain records of destruction available for inspection for a period of five (5) years.

You shall provide a copy of the log, via email, to the Contracting Officer, Holly Danner, at Holly.R.Danner.civ@us.navy.mil, no later than seven (7) days after destruction of the above documents is completed, as specified above.

You are required to acknowledge and accept the terms of this letter. Such acknowledgement and acceptance must be made by the Facility Security Officer. Email completed forms to the Contracting Officer, Holly Danner, at Holly.R.Danner.civ@us.navy.mil.

DANNER.HOLLY Digitally signed by
.R.1368434562 DANNER.HOLLY.R.1368434562
Date: 2024.01.05 13:25:20
-05'00'

Holly Danner
Contracting Officer

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AN/SPY-6(V) Radar Notice N00024-25-R-5510

Business Name: _____
DUNS Number: _____
CAGE Code: _____
Business Address: _____
Mailing Address: _____
Company Point of Contact (POC): _____
POC Email Address: _____

In the event that you intend to share any of the GFI with a proposed subcontractor, you must submit the following information for the subcontractor:

Business Name: _____
DUNS Number: _____
CAGE Code: _____
Business Address: _____
Mailing Address: _____

As the Facility Security Officer of the above business, I do hereby acknowledge and accept the terms of this agreement.

Print Name Signature Date

Telephone # Email Address